MTD Attack Map & Error Inventory

Matter 24 — Newanforbi v. Serrato, N.D. Cal. 4:26-cv-05953-ASK

DEFENDANT NOTICE GROUNDS → OPP RESPONSE MAP

Ground 1 — SDP/PDP fail because certification is discretionary.
Opp §§ B–C: Concedes federal discretion; argues § 679.10 creates mandatory processing / explanation / helpfulness constraints; Catholic Charities is pre-statute; screening order already rejected sufficiency challenge under § 1915.

Ground 2 — Retaliation fails because Plaintiff not entitled to certification / civil action is not qualifying crime.
Opp § D: Perry / Umbehr — benefits may not be denied for retaliatory reasons even if discretionary; Ford but-for; five reinforcing allegations; Krishnan quote that Serrato lacked discretion to retaliate.

Ground 3 — Strike declaratory relief / fourth cause.
Opp § E: Concedes may be treated as prayer; keeps prospective official-capacity relief.

Ground 4 — Strike injunction (Winter factors).
Opp §§ A & E: Whittlestone — Rule 12(f) is wrong vehicle; ongoing injury allegations support forward-looking relief; remedy is process correction not compelled signature.

Ground 5 — Strike attorney fees (pro se).
Opp § A: Whittlestone; fees issue premature; Kay v. Ehrler goes to recoverability not 12(f) strike.

Ground 6 — Qualified immunity (individual capacity).
Opp § G: QI does not reach official-capacity Ex parte Young; clearly established retaliation + non-arbitrary decisionmaking; Pearson sequencing.

Also: Related-case futility / serial-litigation narrative (leave to amend).
Opp §§ F & H: Accept narrative; distinguish Fickes / E.D. Cal. / Meza-Gonzalez; no preclusion briefed; leave if any deficiency; FAC ¶ 21 PC cross-reference hedges.

MTD ERROR INVENTORY (VERIFIED FROM FILED PDF)

1. Footer case number (26CV168913) on every page — wrong court/case.
2. Action Filed date July 21, 2026 — incorrect.
3. "First Amended Complain" (missing t) on notice page.
4. Notice ground 4: "payer" for prayer.
5. "an individual s in the United States".
6. Courtroom line blank; Judge line awkward ("Magistrate Judge Honorable Ajay Krishnan.").
7. "Case ,Newanforbi, v. Meza-Gonzalez" punctuation garble.
8. Cites "Complaint ¶" while arguing FAC in places.
9. Uses Winter PI standard as 12(f) strike theory for permanent injunction prayer.
10. 21 days' notice for Sep. 16 hearing (served Aug. 26) vs Civil L.R. 7-2(a) 35-day rule.

HOW STRONG EACH DEFENSE IS (PLAIN VIEW)

Discretionary-certification blunderbuss: rhetorically strong, doctrinally overstated after § 679.10 / AB 1261 and after Dkt. 5.
Retaliation "no entitlement": weakest Notice ground; Opp should win this framing fight.
12(f) strikes: Opp favored under Whittlestone.

QI: live fight; Opp's best QI path is retaliation clearly-established + official-capacity carveout.
Fickes atmosphere: dangerous if court equates judicial-cert denial with Serrato denial; Opp's distinguish must stay crisp.